

3. THE INDIAN ADMINISTRATIVE SERVICE (RECRUITMENT) RULES, 1954

In exercise of the powers conferred by subsection (1) of section 3 of the All-India Services Act, 1951 (LXI of 1951), the Central Government after consultation with the Government of the States concerned, hereby makes the following rules, namely:-

1. **Short title:-** These rules may be called the Indian Administrative Service (Recruitment) Rules, 1954.

2. **Definitions-** In these rules, unless the context otherwise requires,-

(a) "Commission" means the Union Public Service Commission;

¹(aa) "Direct recruit" means a person appointed to the service after recruitment under clause (a) of sub-rule (1) of rule 4;

(b) "Joint Cadre" and "State Cadre" have the meaning respectively assigned to them in the Indian Administrative Service (Cadre) Rules;

²(c) []

(d) "member of the Indian Civil Service" means a person who, having been appointed to the civil service under the Crown of India, known as the Indian Civil Service, continues, on and after the commencement of the Constitution to serve under the Government of India or of a State;

(e) "Service" means the Indian Administrative Service;

(f) "State" means ³[a State specified in the first Schedule to Constitution and includes a Union Territory];

(g) "State Civil Service" means:-

⁴(i) for the purpose of filling up the vacancies in the Indian Administrative Service Cadre for the Arunachal Pradesh, Goa, Mizoram, Union Territories under rule 9, any of the following Services, namely:-

a. the Delhi and Andaman and Nicobar Islands Civil Service;

b. the Goa Civil Service;

c. the Pondicherry Civil Service;

d. the Mizoram Civil Service

e. the Arunachal Pradesh Civil Service

(ii) in all other cases, any service or services approved for the purpose of these rules by the Central Government, in consultation with the State Government, a member

¹ Inserted vide MHA Notification No. 23/ 46/ 64-AIS(II)-A dated 13-9-1966

² Omitted vide DP & AR Notification No. 31/ 7/ 72- AIS(I)-A dated 16-3-73.

³ Substituted with effect from 1-11-1956 vide MHA Notification No. 13 /21 / 56 /-AIS(III) dated 28-2-1958, and further amended with effect from 4-9-1958 vide MHA Notification No. 5 /25 /58-ASI(II)dated 8-7-1959.

⁴ Substituted vide DP & T Notification No. 13013 /1/89-AIS(I) dated 24-1-72.

of which normally holds charge of a sub-division of a district for purposes of revenue and general administration or posts of higher responsibility;

⁵(h) "State Government concerned", in relation to a Joint Cadre, means the Joint Cadre Authority.

⁶3. **Constitution of the Service:-**The Service shall consist of the persons recruited to the Service in accordance with the provisions of these rules.

4. **Method of recruitment of the Service:-** (1) Recruitment to the Service after the commencement of these rules, shall be by the following methods, namely:-

(a) By a competitive examination;

⁶(aa) Omitted.

(b) By promotion of a [substantive] member of a State Civil Service;

[(c) by selection, in special cases from among persons, who hold in a substantive capacity gazetted posts in connection with the affairs of a State and who are not members of a State Civil Service.]

⁶4(2) Subject to the provisions of these rules,

(a) the method or methods of recruitment to be adopted for the purpose of filling up any particular vacancy or vacancies as may be required to be filled during any particular period of recruitment, shall be determined by the Central Government in consultation with the Commission and the State Government concerned;

(b) the number of persons to be recruited by each method shall be determined on each occasion by the Central Government in consultation with the State Government concerned.

⁷4(3) Notwithstanding anything contained in sub-rule (1), if in the opinion of the Central Government the exigencies of the service so require, the Central Government may, after consultation with the State Government and the Commission, adopt such methods of recruitment to the Service other than those specified in the said sub-rule, as it may by regulations made in this behalf prescribe.

⁸4(4) Notwithstanding anything hereinbefore contained in this rule, in relation to the State of Jammu & Kashmir, recruitment to the State Cadre on its initial constitution shall be made by such method as the Central Government may after consultation with the State Government and the Commission, prescribe.

⁶[4(5) & 4(6)]

5. Disqualifications for appointment

⁵ Substituted vide D.P. & A.R. Notification No. 13 /4/ 71-AIS-I dated 11.1.72

⁶ Substituted & amended vide DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

⁷ Introduced vide MHA notification No.17/4/56-AIS(III) dated 14-5-56

⁸ Introduced w.e.f. 4-9-58 vide MHA Notification No.5/25/58-AIS-II dated 8.7.59

- (1) No person shall be qualified for appointment to the Service unless he is a citizen of India ⁹ () (or belongs to such categories of persons as may, from time to time, be notified in this behalf by the Central Government).¹⁰

¹¹[]

¹²5(2) No person-

- (a) Who has entered into or contracted a marriage with a person having a spouse living, or
- (b) Who, having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to the Service:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and there are other grounds for so doing exempt any person from the operation of this sub-rule.

5(3) []

¹³5(4) []

¹⁴**6. Appointment to the Service:-**

- (1) All appointments to the Service after the commencement of these rules shall be made by the Central Government and no such appointment shall be made except after recruitment by one of the methods specified in rule 4.

- 6(2) The initial appointment of persons recruited to the Service under clause (a)¹⁵ of sub-rule (1) of rule 4 shall be in the Junior Time Scale of pay.

- ¹⁶6(3) The initial appointments of persons recruited to the Service under clauses (b) and (c) of sub-rule (1) of rule 4 shall be in the Senior Time Scale of pay.

- ¹⁷6A- Appointment of direct recruits and officers recruited by selection from among Released Emergency Commissioned Officers and Short Service Commissioned Officers to posts in the Senior Time Scale of pay:- (1) Appointments of officers recruited to the Service under clause (a) of sub-rule (1) of rule 4 to posts in the Senior Time Scale of pay shall be made by the State Government concerned.

- 6A(2) An officer, referred to in sub-rule (1), shall be appointed to a post in the Senior Time Scale of pay, if, having regard to his length of service and experience, the State Government is satisfied that he is suitable for appointment to a post in the Senior Time Scale of pay.

⁹ Substituted/omitted vide DP&T Notification No.1/1/71-AIS-A, dated 6.3.71

¹⁰ Inserted/omitted w.e.f. 5.4.66 vide MHA Notification No.1/1/66-AIS(I), dated 12.8.68

¹¹ Omitted vide DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

¹² ibid note 9

¹³ ibid note 9

¹⁴ Rule 6 re-numbered as sub-rule (1) and sub-rules (2) and (3) introduced w.e.f. 24.9.66 vide MHA Notification No.23/63/46-AIS-III-A dated 13.9.66

¹⁵ ibid note 11

¹⁶ Substituted & amended vide DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

¹⁷ Inserted vide Notification No.11027/1/75-AIS-A dated 29.6.76

¹⁸ Provided that, if he is under suspension or disciplinary proceedings are instituted against him, he shall not be appointed to a post in the Senior Time Scale of pay, until he is reinstated in the Service, or the disciplinary proceedings are concluded and final orders are passed thereon, as the case may be;

Provided further that on the conclusion of the disciplinary proceedings,

- (a) if he is exonerated fully and the period of suspension, if any, is treated as duty for all purposes, he shall be appointed to the Senior Time Scale of pay from the date on which he would have been so appointed, had the disciplinary proceedings not been instituted against him, and paid accordingly; and
- (b) if he is not exonerated fully and if the State Government, after considering his case on merits, proposes not to appoint him to the Senior Time Scale of pay from the date on which he would have been so appointed had the disciplinary proceedings not been instituted against him, he shall be given an opportunity to show cause against such action."

6A (3) Notwithstanding anything contained in sub rule (2), the State Government may-

- (a) withhold the appointment of an officer, referred to in sub-rule (1), to a post in the Senior Time Scale of pay-
 - (i) till he is confirmed in the Service, or
 - (ii) till he passes the prescribed departmental examination or examinations, and appoint to such a post, an officer junior to him; ¹⁹who has passed the prescribed departmental examination or examinations.
- (b) appoint an officer, referred to in sub-rule (1), at any time to a post in the senior time-scale of pay as a purely temporary or local arrangement.

7. Recruitment by competitive examination.

- 7(1) A competitive examination for recruitment to the Service shall be held at such intervals as the Central Government may, in consultation with the Commission, from time to time, determine.
- 7(2) The examination shall be conducted by the Commission in accordance with such regulations as the Central Government may from time to time make in consultation with the Commission and State Governments.
- 7(3) Appointments to the Service shall be subject to orders regarding special representation in the Service for Scheduled Castes Scheduled Tribes [and Other Backward Castes] ²⁰ issued by the Central Government from time to time in consultation with the State Governments.

Provided that the candidates belonging to the Scheduled castes or Scheduled Tribes [or the other Backward Classes] ²¹ and declared by the Commission to be suitable for appointment to the Service shall be appointed against unreserved vacancies in case they qualify for appointment to the Service based on their merit without recourse to the benefit of reservation.

¹⁸ ibid note 17

¹⁹ Inserted vide DP&AR Notification No.11/5/73-AIS(I)-A dated 6.7.74

²⁰ Added vide DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

²¹ ibid note 20

- 7(4) Candidates belonging to the Scheduled Castes or the Scheduled Tribes or Other Backward Classes declared by the Commission to be suitable for appointment to the Service with due regard to the maintenance of efficiency of administration may be appointed to the vacancies reserved for the candidates of the Scheduled Castes or the Scheduled Tribes or Other Backward Classes, as the case may be, under sub-rule (3)

Explanatory Note:- The provisions for reservation in respect of the Other Backward Classes for recruitment to the Service was commenced from the year 1994 onwards and hence it is proposed to give retrospective effect to the provisions of sub-rule (3) of Rule 7 from the 1st day of January 1994. It is certified that by giving retrospective effect to the provisions of the sub-rule (3) of Rule 7, nobody is being adversely effected.

7 (5) []

²²7A [deleted]

8. Recruitment by promotion or selection for appointment to State and Joint Cadre:-(1)
The Central Government may, on the recommendations of the State Government concerned and in consultation with the Commission and in accordance with such regulations as the Central Government may, after consultation with the State Governments and the Commission, from time to time, make, recruit to the Service persons by promotion from amongst the ²³[substantive] members of a State Civil Service.

- 8(2) The Central Government may, in special circumstances and on the recommendation of the State Government concerned and in consultation with the Commission and in accordance with such regulations as the Central Government may, after consultation with the State Government and the Commission, from time to time, make, recruit to the Service any person of outstanding ability and merit serving in connection with the affairs of the State who is not a member of the State Civil Service of that State ²⁴[but who holds a gazetted post in a substantive capacity].

- 8(3) (a) Where a vacancy occurs in a State Cadre which is to be filled under the provision of this rule, the vacancy shall be filled by promotion of a member of the State Civil Service or, as the case may be, by selection of any other officer serving in connection with the affairs of that State.
- (b) Where a vacancy occurs in a Joint Cadre which is to be filled under the provision of this rule, the vacancy shall, subject to any agreement in this behalf, be filled by promotion of a member of the State Civil Service of any of the States constituting the group or as the case may be, by selection of any other officer serving in connection with the affairs of any such State(s).

²⁵**9. Number of persons to be recruited under rule-8**

- 9(1) The number of persons recruited under rule 8 in any State or group of States shall not, at any time, exceed 33 1/3 per cent of the number of senior posts under the State Government, Central Deputation Reserve, State Deputation Reserve and Training Reserve in relation to that State or to the group of States, in the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955:

²² deleted vide DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

²³ Added vide MHA Notification No.13/10/57-AIS(III)-A, dated 29.7.1958

²⁴ ibid note 23

²⁵ Amended DOPT Notification No.14015/51/96-AIS(I) dated 31.12.1997(GSR No.729E dt. 31.12.1997)

Provided that the number of persons recruited under sub-rule (2) of the rule 8 shall not at any time exceed fifteen per cent of the number of persons recruited under rule 8.

Explanation: For the purpose of calculation of the posts under this sub-rule, fractions, if any, are to be ignored.

9(2) Notwithstanding anything contained in this rule, in relation to the State of Jammu and Kashmir, the number of persons recruited under sub-rule (1) shall not upto 30th April, 2002, exceed at any time, fifty per cent of the number of senior posts under the State Government, central deputation reserve, state deputation reserve and the training reserve in relation to that State in the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955.

9(2A) & 9(3)[Omitted]

10. **Interpretation.**- If any question arises as to the interpretation of these rules the Central Government shall decide the same.

11. **Repeal and Saving.**- All rules corresponding to these rules and in force immediately before the commencement of these rules are hereby repealed:

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken under the corresponding provisions of these rules:

GOVERNMENT OF INDIA'S DECISIONS

Government of India's Decisions under Rule 3

1. The lien in the parent cadres of I.C.S. officers permanently seconded to the I.F.S. should be permanently suspended and the officers given proforma promotion in higher ranks in the parent cadres whenever due. In the vacancies caused by the suspension of the liens of these officers appointments should be made on a provisionally substantive basis. Where such an officer is given substantive proforma promotion and confirmed in a super time-scale post in the cadre, while serving in the I.F.S. he would acquire a lien in the post to which he is promoted. Consequently the suspended lien in the lower post should be terminated and only the lien acquired in the higher post should be permanently suspended so that he does not hold liens on two posts at the same and the promoted officer holding the lower post on a provisionally substantive basis can be appointed to it in a substantive capacity.

[G.I. MHA letter No. 8/8/62-AIS(II), dated 23/5/1963.]

2. An I.C.S. officer of the judiciary who has been holding an executive post intermittently between the date of commencement of the Constitution and the date of commencement of these Rules would not be eligible for a declaration that he is a member of the I.A.S. Likewise an I.C.S. officer of the judiciary, who has been holding an executive post intermittently before the date of commencement of these Rules and the commencement of the Constitution, who has later reverted to the judiciary, before the date of commencement of these Rules, cannot be declared to be member of the I.A.S.

[G.I. M/Law U.O. No. 14400/60-Adv.(A), dated 8/11/1956-M.H.A. F. No. 1/5/56-AIS-(I).]

Government of India's Decisions under Rule 4:

1.1. Under sub- rule (5), the Government of India have decided that appointment to the Joint I.A.S. cadre for the Union Territories of Delhi and Himachal Pradesh on its initial constitution shall be by one or more of the following methods:-

- (i) by appointment of officers selected by the Special Recruitment Board, 1950/51 and included in List I and list II under the Extension to States Scheme who could not be appointed so far to the I.A.S. in the absence of an All India Service cadre in Himachal Pradesh and Delhi.
- (ii) by transfer of I.A.S. officers from the cadres of the other States. Such transfers will, however, take place only with the consent of the State Governments and the individual officers concerned;
- (iii) by appointment of the candidates selected on the results of the I.A.S. (Special Recruitment) Examination, 1956;
- (iv) by promotion of officers belonging to the Himachal Pradesh Civil Services of at least 8 years' seniority and such of officers under the Delhi Administration as have been holding substantive appointments of status comparable to that of a Deputy Collector under that Administration for a minimum period of 8 years;
- (v) by direct recruitment from amongst the candidates declared successful as a result of the latest I.A.S. Competitive Examination conducted by the Union Public Service Commission.

1.2 Recruitment to the cadre after its initial constitution shall be made in accordance with the Recruitment Rules.

2.1 Under sub-rule (5), the Government of India have decided that appointment to the joint I.P.S. cadre for the Union territories of Delhi and Himachal Pradesh on its initial constitution shall be by one or more of the following methods:-

- (1) by transfer of I.P.S. officers from the cadres of other States. Such transfers will, however, take place only with the consent of the State Governments and the individual officers concerned.
- (2) by selection of officers belonging to the Police Service of Himachal Pradesh, who are at present holding the posts of Superintendents of Police and above; only officers holding appointment with eight years' seniority in the State or equivalent cadre will be eligible for consideration. Selections will be made in consultation with the Union Public Service Commission; and
- (3) by direct recruitment from amongst the candidates declared successful as a result of the latest I.P.S. Competitive Examination conducted by the Union Public Service Commission.

Recruitment to the Service after the initial constitution of the Service shall be in accordance with the Recruitment Rules.

2.2 Till such time as the joint cadre is fully constituted and is able to provide suitable officers for all the posts included in the cadre, existing arrangements in regard to the staffing of various posts including deputation of officers from other States will continue.

[G.I., M.H.A file No. 3/59/59-AIS(II).]

Government of India's Decision under Rule 5:

Under this rule, it is not necessary for a female officer to obtain the formal permission of the Government before marriage.

[G.I. M.H.A. letter No. 1/1/57-AIS(I), dated 6/2/1957.]

Government of India's Decision under Rule 6A:

The Government of India have held that Rule 6A will apply to vacancies arising in senior posts in the direct recruitment quota after the date of introduction of the said rule viz., 24-9-1966. The direct recruits who became eligible for appointment to senior posts against the vacancies in the direct recruitment quota according to their seniority, prior to 24-9-1966 (the date of introduction of rule 6A) would be deemed to have been appointed to senior posts in accordance with para 4 of Ministry of Home Affairs letter No. 23/46/63-AIS(III)-Vo1. II, dated 29th March, 1966 and as such they will continue to be paid their pay in the senior time-scale of pay even under the introduction of rule 6A till they are actually appointed, to senior posts or the vacancies disappear, as the case may be

[G.I., M.H.A. letter No. 23/46/63-AIS(III), dated 26/10/1966.]

Government of India's Decisions under Rule 7:

The rate of annual recruitment for each State should be worked out, after taking into account not only the maintenance element for meeting deaths, retirements and other casualties in the direct recruitment quota but also the growth element to meet the anticipated expansion of this quota.

[G.I., M.H.A letter No.6/21/64-AIS(I), dated 7/9/1964].

Government of India's Decisions under Rule 8:

1. An officer belonging to a State Judicial Service recommended for appointment under this rule shall be appointed only after obtaining the consent of the concerned High Court.

[G.I., M.H.A. letter No. F. 5/2/55-AIS(I), dated 29/12/1955.]

2. It has been decided that the members of a State Police Service, the I.P.S., or any other All India Service, that may be constituted in future, and its feeder Service, shall not be eligible for appointment to the I.A.S. under this rule.

[G.I., M.H.A. letter No. F. 13/10/57-AIS(II), dated 14/8/1958.]

Government of India's Decision under Rule

1. In reference to proviso to rule 9(1), it was decided that since the number of persons promoted under sub-rule(2) of rule 8 is not to exceed 15 per cent of the total number of posts available for promotion in a State cadre, any fraction even if it is more than one half, should be ignored.

[G.I., M.H.A. letter No. F. 1/2/62-AIS(I), dated 26/9/1962.]